

documents or that Plaintiff's counsel failed to provide proper documents to OneLegal.com.

"Unless otherwise provided, a document is deemed filed on the date it is received by the court clerk." (Cal. R. Ct., rule 1.20.)

Motion for Nunc Pro Tunc Order Pursuant to C.C.P. § 473(d) GRANTED.

The Complaint is deemed filed August 13, 2025.

OSC re Proof of Service is continued to 9.15.26.

Case Management Conference is continued to 9.15.26.

4.

| CASE #      | CASE NAME                                                                                 | HEARING NAME                                                                                                               |
|-------------|-------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------|
| CVPS2509899 | COUNTY OF RIVERSIDE<br>VS MONROE SHOPS, LLC,<br>A CALIFORNIA LIMITED<br>LIABILITY COMPANY | DEMURRER TO ANSWER ON<br>COMPLAINT FOR EMINENT<br>DOMAIN/INVERSE CONDEMNATION<br>(OVER \$35,000) OF COUNTY OF<br>RIVERSIDE |

**Tentative Ruling:** A demurrer to an answer tests whether it states facts sufficient to constitute a defense. (Code Civ. Proc., § 430.20(a).) In an eminent domain action, an answer objecting to the plaintiff's right to take **shall** state the "specific facts upon which the objection is based." (Code Civ. Proc., § 1250.350, emphasis added.)

Defendants filed an Answer on 4/24/26. There, affirmative defenses nos. 1, 2, 3, 4, 8, 9, 10 challenge the public necessity findings that the Resolution of Necessity established. (Code Civ. Proc., § 1245.250(a).) In *City of Lincoln v. Barringer* (2002) 102 Cal.App.4th 1211, the court held that a property owner who objects to a taking must exhaust his or her remedies by appearing and objecting at the public hearing on the resolution. Here, the Resolution of Necessity on file shows that Defendants did *not* appear or object. Defendants did not rebut their non-appearance. Instead, they argue that the hearing notice given was defective since it provided 10 days instead of the required 15 days. (CCP § 1245.235(b)(3).) County counters that there is no mandatory 15-day service requirement under CCP §1245.235(d). Section 1245.235(d) states:

Notwithstanding subdivision (b), the governing body may satisfy the requirements of this section through any other procedure that has given each person described in subdivision (a) **reasonable** written personal notice and a **reasonable** opportunity to appear and be heard.

Accordingly, County argues that property owners are *not* guaranteed a minimum of 15 days after notice is mailed to file objections. It also argues that reasonable notice was provided. Here, the record reflects that the County complied with CCP § 1245.235 by mailing notice by first class mail to Monroe Shops, LLC at the address it provided for the tax assessor roll as shown in the 7/31/25 grant deed. This creates a presumption of receipt. (Evid. Code, §§ 641, 664.) Defendants claimed only insufficient time of notice, but do not contest the actual receipt of the notice. Accordingly, Defendants' argument

does not negate the fact that notice was provided and that Defendants were afforded an opportunity to be heard. The statute allows for a flexible, “reasonable” procedures. (CCP § 1245.235(d).)

Affirmative defenses nos. 5 (impairment of access/severance damages), 6 (severance damages), and 7 (precondemnation damages/unreasonable delay) plead only conclusory allegations of damage. For example, no. 5 pleads that the scope and conditions of the easement are “excessive, unreasonable, and not necessary.” For no. 6, it pleads “diminution in value, loss of use, interference with tenant operations, and reduced income potential.” For no. 7, it pleads “unreasonable delay and/or precondemnation conduct” that “affects the value, use, and operation of Defendants’ property.” Here, they fail to plead the specific facts as required.

Affirmative defense no. 11 pleads inverse condemnation offset/credits. An inverse condemnation claim is a cause of action, not an affirmative defense, and is improper here. (*Red Mountain, LLC v. Fallbrook Public Utility Dist.* (2006) 143 Cal.App.4th 333, 356-357.) No. 12 (constitutional violations) again fails to plead any specific facts showing how the proposed taking violates constitutional principles beyond a claim for compensation. No. 13 (reservation of rights) is not an actual defense.

Plaintiff’s Request for Judicial Notice #s 1-6 GRANTED.

Plaintiff’s Demurrer to the Answer of Defendants Monroe Shops LLC; David A. Demers and Robert C. Tall as Trustees of Demers-Tall Trust SUSTAINED.

The 1<sup>st</sup>, 2<sup>nd</sup>, 3<sup>rd</sup>, 4<sup>th</sup>, 5<sup>th</sup>, 6<sup>th</sup>, 7<sup>th</sup>, 8<sup>th</sup>, 9<sup>th</sup>, 10<sup>th</sup>, 11<sup>th</sup>, 12<sup>th</sup> and 13<sup>th</sup> Affirmative Defenses are SUSTAINED with leave to amend.

Defendant shall file an amended answer within 20 days.

Case Management Conference is rescheduled from 7.20.26 to 8.31.26.

5.

| CASE #      | CASE NAME                                                                                 | HEARING NAME                         |
|-------------|-------------------------------------------------------------------------------------------|--------------------------------------|
| CVPS2509899 | COUNTY OF RIVERSIDE<br>VS MONROE SHOPS, LLC,<br>A CALIFORNIA LIMITED<br>LIABILITY COMPANY | MOTION FOR PREJUDGMENT<br>POSSESSION |

**Tentative Ruling:** CCP §1255.410(a) provides that when filing a complaint, and prior to entry of judgment, a plaintiff may move for an order for possession upon demonstrating that the plaintiff is entitled to take the property by eminent domain and has made the requisite deposit. The motion is required to: 1) describe the property, 2) state the date that plaintiff is seeking possession, 3) inform defendant they have a right to oppose the motion, and, 4) if opposing on the ground of hardship, a declaration of facts as to the hardship.

CCP §1255.410(c) states that a defendant or occupant must oppose the motion no later than 30 days after service of the motion. If the defendant asserts a hardship, it must be supported by a declaration under penalty of perjury. (*Id.*)